DEPARTMENT OF THE NAVY
NAVAL SURFACE FORCE
UNITED STATES PACIFIC FLEET
2841 RENDOVA ROAD
SAN DIEGO CALIFORNIA 92155-5490

IN REPLY REFER TO
5720
N00J/076

September 15, 2021

John Greenewald
The Black Vault
27305 W. Live Oak Road #1203
Castaic, CA 92384

Dear Mr. Greenewald,

SUBJECT: FREEDOM OF INFORMATION ACT REQUEST CASE NUMBER DON-NAVY-2021-005821

This letter is in response to your Freedom of Information Act (FOIA) request submitted Office of Naval Operations FOIA Office on April 21, 2021, in which you requested: "all records pertaining to an incident on July 15, 2019, approximately between the times of 10:30pm. – 11:30pm Pacific off the coast of San Diego, CA, wherein the USS OMAHA (LCS 12) encountered and observed a "possible "UAS", spherical in shape, moving towards the surface of the water and then disappearing. If this yields a "no records" response, the search be widened to around the same time frame of the same incident. In addition, I ask that you include all ship and deck logs for the USS OMAHA, for the dates of July 13, 2019 – July 18, 2019." Your request was referred to this office on April 28, 2021, with assigned case number DON-NAVY-2021-005821 and assigned internal tracking number 2021-58.

Your request was processed in accordance with the Freedom of Information Act (5 U.S.C. § 552), Part 701 of Title 32 of the Code of Federal Regulations, and the Department of the Navy Freedom of Information Act Program (SECNAVINST 5720.42G).

For the purpose of assessing FOIA processing fees, you have been categorized as a "media" requester, and as such, only duplication fees are applicable to your request. In this instance, there are no fee charges for the processing of your request by this office.

USS OMAHA (LCS 12) conducted a thorough search of the ship's spaces for responsive records. For this class of ship, while underway, deck logs are digital voice recordings. These recordings are periodically written to optical media and physically shipped to Naval History and Heritage Command (NHHC) for archiving and freeing up space on ship hard drives. The ship searched for digital copies, CD/DVD formatted logs and voice recordings and paper copies for any UAS incident occurring July 15, 2019 and deck logs from July 13 – 18, 2019, and concluded that the prior crew did not retain or create records for July 1 – 18, 2019. NHHC conducted a thorough search of responsive records and found none. Further, NHHC contacted the Federal Records Center (FRC) and were informed that records for the specific dates did not exist in their archives. The loss of these records indicates their system for record retention requires further attention. Nonetheless, NHHC was able to locate deck logs for July 19 – 31, 2019, and provided to you in this release. Our review of the responsive records reveal that they contain personal identifiers of third parties (such as names and/or social security

numbers), release of which would constitute an unwarranted invasion of personal privacy. Pursuant to the provisions of FOIA, 5 U.S.C. § 552 (b)(6) your request must be partially denied in order to withhold this information.

If you have questions regarding the processing of your request, you may contact Mr. Juan Lopez, Command FOIA Coordinator, at (619) 437-2206 or email: juan.r.lopez@navy.mil. With any adverse determination, you have the right to seek dispute resolution from the Department of the Navy FOIA Public Liaison by contacting Mr. Christopher Julka at (703) 697-0031 or email: christopher.a.julka@navy.mil.

You have the right to appeal if you are not satisfied with this response. It must be received within **90 calendar days** from the date of this letter. Please provide a letter requesting an appeal, with a

copy of your initial request and a copy of the letter of denial, in an envelope marked "Freedom of Information Act Appeal" or "Appeal of Records." You are encouraged (though not required) to provide an explanation why you believe the redactions were inappropriate or our search was inadequate. You may file your appeal by one of the two methods below:

1. FOIA Online: This will work only if you set up an account on FOIA Online before you make the request that you would like to appeal. To set up an account, go to FOIA Online (www.foiaonline.gov), and click "Create Account" (a link located within the blue banner at the top in the upper right corner). Enter your data into the field that subsequently appears and click "Save" (at the bottom left of the screen). With your account, you will have the ability to file an appeal on FOIA Online to any request you submit on FOIA Online. To submit your appeal, navigate to the "Search" tab and click on the "Search For" field. Enter your request tracking number or a keyword. When the request is populated, locate the "Create Appeal" tab on the left side of the screen. Complete the fields and "Save" and the system will automatically submit your appeal.

2. By Mail: Department of the Navy
Office of the Judge Advocate General (CODE 14)
1322 Patterson Ave, SE, Suite 3000
Washington Navy Yard, DC 20374-5066

Additionally, you may contact the Office of Government Information Services (OGIS) at the National Archives and Records Administration to inquire about the FOIA mediation services they offer. The contact information for OGIS is: Office of Government Information Services, National Archives and Records Administration, 8601 Adelphi Road – OGIS, College Park,

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Maryland 20740-6001, email at ogis@nara.gov; telephone at (202) 741-5770; toll free at (877) 684-6448 or fax at (202) 741-5769. For more information, visit: https://www.archives.gov/ogis/about-ogis/contact-information.

Sincerely,

J. M. LUCCI
Captain, Judge Advocate General's Corps
U.S. Navy
Force Judge Advocate
By Direction of the Commander

Enclosure: (1) Responsive records